

Securities Trading Policy

McMillan Shakespeare Group of Companies

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McMillanShakespeareGroup

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1. Purpose

McMillan Shakespeare Limited (MMS) is a public company listed on the Australian Securities Exchange (“ASX”). Under the *Corporations Act 2001* and the ASX Listing Rules there are strict rules governing when a person who has inside information is permitted to trade in any shares, options and other securities in MMS (“MMS Securities”).

This document sets out the policy of MMS and its related entities (“MMSG”) regarding when directors, officers, employees and contractors of MMSG (collectively “MMS Staff”) may trade in MMS Securities.

It is the policy of MMSG to comply with all laws and regulations which apply in each jurisdiction in which it operates. It is also the policy of MMSG that MMS Staff must comply with all internal policies and procedures which apply to them.

2. Scope

This policy applies to all business units of McMillan Shakespeare Limited (MMS) and to all persons employed by or representing the McMillan Shakespeare Group (MMSG), whether full time, part time or casual.

Refer Annexure A for details on subsidiary companies and joint ventures of the McMillan Shakespeare Group (collectively called ‘MMSG’)

3. General prohibition

MMS Staff who possess inside information must not:

- (a) apply for, acquire or dispose of MMS Securities or enter into an agreement to apply for, acquire or dispose of MMS Securities (“Trade”);
- (b) procure, encourage, incite or induce another person to Trade (“Procure a Trade”); or
- (c) directly or indirectly communicate the information, or cause the information to be communicated, to another person who would be likely to Trade or Procure a Trade.

Inside information is information that:

- (a) is not generally available; and
- (b) if it were generally available a reasonable person would expect it to have a material effect on the price or value of a company’s securities.

Examples of inside information include:

- (a) information about the financial performance of MMSG;
- (b) information about a proposed acquisition of another company by MMSG;
- (c) information about significant management changes in MMSG; and
- (d) any other information likely to affect the current or future years’ earnings of MMSG, which, in each case, is not generally available to the public.

Information is generally available if it consists of readily observable matter, has been made public, for example, written about in the newspaper or discussed on the radio, or has been announced to the ASX.

To avoid breaching the law, you must only Trade in MMS Securities when you are not in possession of inside information. If you are unsure about whether you possess inside information, you are strongly recommended

to speak to the Company Secretary, the Group General Counsel or your legal adviser prior to trading in MMS Securities.

It is important to note that no trading in MMS Securities by MMS Staff can occur if it involves the use of inside information, irrespective of whether this policy provides that trading can occur outside a Closed Period.

4. Application of this policy

All MMS Staff must comply with this policy. Directors of the MMSG and members of the Senior Executive Team of MMSG ("**Key Management Personnel**") are also required to ensure that any of their associates (including their spouse, de facto partner, children under the age of 18 years and any company or trust which they or any member of their family control) ("**Associated Parties**") also comply with the requirements of this policy.

5. Closed Periods

There are various times during the year ("**Closed Periods**") during which no MMS Staff may Trade in MMS Securities, unless an appropriate exclusion applies.

The Closed Periods are as follows:

- (a) from close of business on 31 December to the opening of the ASX the first trading day after MMS' half-year results are released to the ASX; and
- (b) from close of business on 30 June to the opening of the ASX the first trading day after MMS' full-year results are released to the ASX;
- (c) for the two weeks preceding, and the first trading day following, the Annual General Meeting.

Again please note, no trading in MMS Securities by MMS Staff can occur if it involves the use of inside information, irrespective of whether this policy provides that trading can occur outside a Closed Period.

Special requirement for Key Management Personnel

Key Management Personnel must first obtain written approval from the Chairman of the MMS Board **prior** to trading in MMS Securities.

6. Exceptions to Trading During Closed Periods

The Closed Periods do not apply in relation:

(a) MMS Employee Option Plan

Participation in the MMS Employee Option Plan (including the allocation of options and the issuing of shares pursuant to the Employee Option Plan) but do not apply in respect of any subsequent trading of MMS Securities to which MMS Staff become entitled under those plans.

(b) Dealings under an Invitation made to all or most MMS Security Holders

Dealings under an offer or invitation made to all or most MMS Security Holders such as a share purchase plan, a dividend reinvestment, or a rights issue.

(c) Dealings which Results in No Change to the Beneficial Interest in the Securities

Dealings which have no change to the beneficial interest in MMS Securities.

(d) Take Over Offer

The acceptance of a takeover offer.

(e) Written Approval

A Trade in MMS Securities for which prior written approval of the Chairman (in relation to Key Management Personnel and their Associated Parties) or the prior written approval of the Chairman, Group CFO or the CEO (in relation to other MMS Staff) has been obtained.

Any MMS Staff wishing to Trade in MMS Securities during a Closed Period must submit a request in writing to the Company Secretary together with a signed declaration by the relevant MMS Staff that they do not possess any inside information. Approval may be granted in circumstances in which the relevant MMS Staff is in severe financial hardship or other circumstances deemed by the Chairman to be exceptional. Approval must be provided in writing (including by way of email). Approval, if granted, will be valid for a period of 7 days.

7. Hedging, Short term trading and Margin loans

MMS Staff must not enter into a transaction that is designated or intended to hedge that employee's exposure to the MMS Security that is subject to retention arrangements or an unvested MMS option. Key Management Personnel and their Associated Parties must not engage in short-term or speculative trading in MMS Securities. Key Management Personnel and their Associated Parties must not grant a security interest over MMS Securities they own, including any margin loan without first receiving the written consent of the Chairman.

8. Notifications

Key Management Personnel must notify the Company Secretary within 3 business days after a Trade in any MMS Securities takes place. Directors of MMS have agreed with MMS to provide detailed notice of such dealings to the Company Secretary to comply with requirements of notification under the ASX Listing Rules, including information as to whether the dealing occurred in a Closed Period in circumstances where prior written approval was required, and whether that approval was obtained.

9. MMSG Customers or Suppliers

MMSG employees who regularly manage customer or supplier relationships may gain knowledge of price sensitive information applicable to their customers or suppliers and accordingly they should not trade in their customers or suppliers securities.

10. External Advisers

MMS Staff must ensure that external advisers who may receive price sensitive information are bound by confidentiality agreements or other enforceable confidentiality obligations.

11. Breaches

A breach of law relating to insider trading can have serious consequences, including individual criminal and civil liability. A person found guilty of insider trading may also be required to compensate either the company or other persons who have suffered loss as a result of the insider trading (or otherwise account for the profits made). It is a criminal offence to breach the insider trading provisions of the *Corporations Act 2001* and jail terms of up to five years may be imposed if a person is convicted of trading while in possession of inside information.

A breach of this Policy will be treated by MMSG as serious misconduct, and may lead to disciplinary action, including termination of employment with the relevant MMSG entity.

12. Enquiries

If you are unsure about any matters contained in this policy, you are strongly recommended to speak to the Company Secretary, the General Counsel or your legal adviser.

13. Relevant MMSG Codes and Policies

This policy is not a stand alone policy but operates in conjunction with other MMSG frameworks, policies and codes which include:

- Code of Conduct
- Conflicts of Interest Policy
- Disciplinary Policy and Process
- Employee Due Diligence Policy
- Risk Management Framework and Policy
- Compliance Framework
- Breach and Incident Reporting Policy
- Whistleblower Policy
- Continuous Disclosure Policy
- Fraud and Corruption Policy and Plan
- Procurement Policy
- Responsible Manager Policy
- AML / CTF Program
- Disciplinary Policy and Process
- Privacy Policy

These policies are available on the MMSG intranet under the Human Resources -> HR Policies section

[HR Policies](#)

Annexure A

1. McMillan Shakespeare Limited ACN 107 233 983 (parent company)
2. Maxxia Pty Ltd ACN 082 449 036
3. Remuneration Services (QLD) Pty Ltd ACN 093 173 089
4. Interleasing (Australia) Limited ACN 008 589 562
5. TVPR Pty Ltd ACN 008 596 290 (trading as Holden Leasing)
6. Just Honk Pty Ltd (ACN 169 836 622)
7. Plan Management Partners Pty Ltd (ACN 609 868 993)
8. Wuxi McMillan Software Co., Ltd. (Chinese entity)
9. Easilease Pty Limited (ACN 117 596 791)
10. CARILA Pty Ltd (ACN 119 906 179)
11. Maxxia Limited (NZ Company No. 2404936)
12. Maxxia Fleet Limited (NZ Company No. 3571651)
13. Maxxia (UK) Ltd (UK Company Number 8373870)
14. Maxxia Finance Ltd (UK Company Number 8373926)
15. Maxxia Limited (UK Company Number 7807901. Maxxia (UK) Ltd is a 50% shareholder in this company)
16. CLM Fleet Mgt Plc (UK Company Number 7473554)
17. The Car House Milton Keynes Limited (UK Company Number 03296592)
18. Corporate Vehicle Rentals Limited (UK Company Number 05950601)
19. Total Vehicle Mgt Limited (UK Company Number 02933078)
20. Anglo Scottish Asset Finance Limited (UK Company Number 6099866)
21. Capex Asset Finance Ltd (UK Company Number 04898119)
22. European Vehicle Contracts Ltd (UK Company Number 06532275)
23. Presidian Holdings Pty Ltd ACN 603 801 770 (parent company of Presidian group)
24. Australian Dealer Insurance Pty Ltd ACN 158 647 271
25. ADU Investments Pty Ltd ACN 159 109 010
26. Davantage Group Pty Ltd ACN 161 967 166
27. Franklin Finance Group Pty Ltd ACN 166 741 564
28. Money Now Pty Ltd ACN 156 544 455
29. Motorsure Pty Ltd ACN 14 086 238 557
30. National Finance Choice Pty Ltd ACN 156 544 464
31. National Financial Solutions (Aust) Pty Ltd ACN 603 933 580
32. National Insurance Choice Pty Ltd ACN 603 933 571
33. Presidian Management Services Pty Ltd ACN 166 382 369
34. National Dealer Services Pty Ltd ACN 603 758 872
35. United Financial Services Pty Ltd ACN 072 442 445
36. United Financial Services Network Pty Ltd ACN 095 911 283